



**IN THE HIGH COURT OF PUNJAB AND HARYANA  
AT CHANDIGARH**

\*\*\*\*

**103**

**CRM-M-33611-2026**

**Date of Decision.:12.06.2026**

**Pooja Yadav**

**.....Petitioner**

**Vs.**

**State of Haryana**

**.....Respondent**

**CORAM:- HON'BLE MR. JUSTICE DEEPAK GUPTA**

Present:- Mr. Manoj Tanwar, Advocate  
for the petitioner.

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**DEEPAK GUPTA, J. (ORAL)**

By way of the present petition filed under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023, the petitioner seeks the concession of anticipatory bail in FIR No.82 dated 25.05.2026 registered under Section 316(5) of the Bharatiya Nyaya Sanhita, 2023 [corresponding to Section 409 IPC] at Police Station Sadar Kanina, District Mahendergarh.

2. The FIR came to be registered on the basis of a communication dated 02.04.2026 addressed by the Block Development and Panchayat Officer, Mahendergarh to the Superintendent of Police, Mahendergarh. The allegation is that despite repeated communications issued by the competent authorities, the petitioner, who served as Sarpanch of Gram Panchayat Syana during the period 2016-2021, failed to account for or hand over Panchayat material valued at ₹19,42,269.37/-.

4. Learned counsel for the petitioner contends that she has been falsely implicated. It is argued that no offence under Section 316(5) BNS is made out as there is neither any misappropriation nor any dishonest conversion of Panchayat property. It is submitted that the FIR has been



lodged nearly five years after the petitioner demitted office and is the outcome of political rivalry. Learned counsel further submits that proceedings regarding recovery are already pending before the revenue authorities and an appeal against the order passed by the SDO is pending before the Deputy Commissioner. It is argued that the dispute is essentially administrative in nature and that the petitioner is willing to join investigation and cooperate with the investigating agency.

5. *Per contra*, learned State counsel submits that during inquiry, it was found that material worth ₹19,42,269.37/- was shown to have been purchased from Panchayat funds during the tenure of the petitioner. However, neither was such material utilized for Panchayat purposes nor was it handed over to the succeeding Sarpanch upon completion of her tenure. It is further submitted that recovery of the said material is yet to be effected and custodial interrogation of the petitioner is necessary to ascertain the whereabouts of the stock and the manner in which the Panchayat property was dealt with.

6. I have heard learned counsel for the parties and perused the material available on record.

7. At the stage of consideration of anticipatory bail, the Court is not expected to conduct a mini-trial or adjudicate upon the correctness of rival claims. The primary consideration is whether, having regard to the nature of accusations and the requirements of investigation, the extraordinary relief of pre-arrest bail deserves to be granted.

8. The allegations against the petitioner pertain to Panchayat property allegedly purchased from public funds and entrusted to her in her capacity as Sarpanch. The record placed before the Court indicates that during the inquiry proceedings, the petitioner herself took the stand that the material in question was available and that she was willing to hand over



the same. Prima facie, such stand lends support to the allegation that the material was not handed over to the successor Sarpanch when the petitioner ceased to hold office in the year 2021.

9. Significantly, despite the lapse of several years after demitting office, the material is alleged to have remained outside the control and custody of the Gram Panchayat. Whether the petitioner has actually retained the stock, whether the stock exists in the quantity reflected in the records and whether the same corresponds with the purchases shown in Panchayat accounts are all matters requiring investigation.

10. The contention that the petitioner has preferred an appeal against the order of the SDO also does not advance her case. Pendency of departmental, administrative or recovery proceedings cannot by itself be a ground to stifle criminal investigation when the allegations prima facie disclose entrustment of public property and its non-accounting. Civil or administrative consequences and criminal liability may co-exist and one does not necessarily exclude the other.

11. This Court also finds substance in the submission of the State that custodial interrogation may be necessary for recovery and verification of the Panchayat material allegedly valued at ₹19,42,269.37/-. The Supreme Court has repeatedly held that anticipatory bail should not be granted where custodial interrogation is necessary for effective investigation and recovery of incriminating material. Public funds and public property stand on a different footing and allegations regarding their misappropriation have to be viewed with the seriousness they deserve.

12. Having regard to (i) the nature of accusations involving entrustment of Panchayat property, (ii) the petitioner's own stand regarding possession/availability of the material, (iii) the necessity of tracing and recovering the stock allegedly purchased from public funds, and

(iv) the fact that investigation is still at a preliminary stage, this Court is of the considered opinion that no exceptional case is made out for grant of anticipatory bail.

13.           Consequently, the present petition is dismissed.
14.           Nothing observed herein shall be construed as an expression of opinion on the merits of the case and shall not prejudice either side during the course of investigation or trial.

(DEEPAK GUPTA)  
JUDGE

June 12, 2024  
Neetika Tuteja

|                           |        |
|---------------------------|--------|
| Whether Speaking/reasoned | Yes/No |
| Whether Reportable        | Yes/No |